

Exhibit B

Rental Agreement Customer

Attachments:

- ☐ Passport copy
- ☐ Permit copy, if applicable.
- ☐ A copy of the Insurance Policy, if applicable.

Billing Information:

Full Name:

Date:

Name on Card:

Credit Card Type: ▼

Credit Card Number: Expiration Date (mm/yy):

Verification Code:

Date: _____

Initials: _____

General Rental Terms & Conditions

Notice to Customer: Please read this agreement carefully. By using the product rented by Third Pole Search and Rescue (Company Number: 193493/075/076) ("**Third Pole**") and/or any service related thereto you accept and agree to be bound by these terms and conditions as well as all the terms and conditions of: (i) the MAGNUS Device Subscriber Terms and Conditions set forth at <https://en.magnus.co.il/about/Terms>, as the same may be amended, modified and supplemented by MAGNUS from time to time (the "**MAGNUS Device Subscriber Terms**"); (ii) Garmin's Commercial Terms and Conditions set forth at https://files.delorme.com/support/inreachwebdocs/TC_inReach_Enterprise_Global.pdf (the "**Garmin's Terms**"), including, without limitation, the limitations on use and service contained in sections 2.5 the disclaimer of warranty in section 8, the limitation of liability in section 9 of said Subscriber Terms and Conditions.

1. **General:** The MAGNUS Device Subscriber Terms and the Garmin Terms are part of the Agreement and are incorporated herein by this reference.
2. **Agreement to Rent:** Third Pole agrees to rent to Customer and Customer agrees to rent from Third Pole the satellite communication device/s specified in Exhibit A attached hereto for Term (the "**Device**").
3. **Term:** The term of this Agreement begins on the Effective Date, as shown above, and except as otherwise provided herein, will continue until the equipment is returned to Third Pole to its registered office at: Thamel Kathmandu Nepal ("**Third Pole Office**").
4. **Rent:** The rent payable by the Customer to Third Pole for the rent of the Device shall be \$5 per day. Customer shall provide a security deposit in the amount of: \$250 as security for the return of the Device in good condition. The Customer's credit card shall be charged for the daily rental rate. For the avoidance of doubt, until Third Pole receives the Devices at Third Pole Office, the Customer shall remain bound by the obligations of this Agreement.
5. **Security Deposit/Reserve/Late Fees:** A reserve against the Customer's credit card will be made as previously indicated, on, or before the Effective Date. Currently Third Pole charges \$250 as a security reserve. This reserve will be maintained by Third Pole and will be applied against any default of Customer in payment of rent or for damage or loss of the Device or other payment due to Third Pole which is chargeable to the Customer. If the customer believes it may be late in returning the Device, it must notify Third Pole prior to the expiration of the Term. Upon termination of this Agreement, and after paying all amounts due to Third Pole in full, the remainder of the reserve will be released from the credit card.
6. **Customer's Responsibility:** It is Customer's responsibility to familiarize itself with the registration, operation and use of the Device and to verify that it is operable. Should Customer not return the Device to Third Pole at the above listed address within 2 days of receiving the Device, the Device shall be deemed operable, and Customer agrees to be responsible for all charges set forth in this Rental Agreement. Customer agrees to pay all charges set forth in this Agreement regardless of coverage or equipment performance in the area of attempted use. Third Pole give no warranty of the fitness of any Device for any specific purpose and advises the Customer to be certain that the use or possession of the Device is legal in any country within which the Customer intends to use or carry the Device. Customer agrees to abide by all effective regulations in any country where the Device is used, including the purchase of any required licenses or permits.
7. **Coverage:** The Device stated coverage areas or maps are dependent on the satellite network provider that the device or application communicates on. Customer agree that he/she will review the coverage maps (<http://www.satflare.com/track.asp?q=iridium#MAP>), including any disclaimers of the provider of these satellite networks and satellite devices and applications. Customer acknowledges that these satellite devices and applications also require a clear view of the sky in order to communicate.

Date: _____

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8. **Indemnity:** To the maximum extent permitted by law, Customer agrees to indemnify, defend and hold harmless Third Pole and its affiliates, licensors and suppliers, including MAGNUS, their respective directors, officers, employees and agents from and against any and all claims, actions, suits or proceedings, as well as any and all losses, liabilities, damages, costs and expenses (including reasonable attorneys fees) arising out of or in connection with his/her use of the Device.
9. **Disclaimer of Warranty:** Customer expressly acknowledges and agrees that use of the Device and related services including emergency rescue services (“**Services**”) is at his/her sole risk. To the maximum extent permitted by applicable law, the Device and Services are provided ‘as is’ and “as available” and all other warranties, representations, and conditions (express or implied) including, but not limited to, any implied warranties or conditions regarding merchantability or fitness for a particular purpose, that the Device and/or Services will meet Customer’s requirements, that the operation will be without interruption or error-free, of satisfactory quality, of quiet enjoyment, that any defects in the Device will be corrected, of non-infringement of thirdparty rights or any other express or implied warranty arising by statute or otherwise in law or from a course of dealing or usage of trade, are hereby expressly excluded from this Agreement to the fullest extent permitted by law. Third Pole and the supplier of the Device give no warranty in relation to the availability, suitability or accuracy of the Device, the Services or in relation to availability, suitability or maintenance of the satellite or other communication systems used by the Device to transmit data transmissions, including SOS emergency signals and/or nonemergency transmissions. Third Pole and the supplier of the Device make no warranties respecting any harm that may be caused by transmission of a computer virus, hacking by a thirdparty, worm, time bomb, logic bomb, or other such computer program.
10. **Limitation of Liability:** To the fullest extent permitted by law, Third Pole and its service providers and affiliates, and their affiliates, respective employees, directors, officers, agents and suppliers including MAGNUS, hereby expressly exclude liability for any damages or claims, including injury or death, and any indirect, special, consequential, incidental, reliance, exemplary or punitive loss, damage, costs or expenses (including loss of income, medical and other expenses, loss of guidance) which may arise out of or in connection with the rental Device and/or the provision of Services (including any delay in providing or failure to provide the Services) or its use by the Customer or by another person. Third Pole and its affiliates and/or service providers, including MAGNUS, network providers, google maps™, Garmin, iridium, and their affiliates, and their respective employees, directors, officers, agents and suppliers exclude all liability, whether resulting from contract, tort (including liability for negligence or breach of statutory duty) or otherwise in respect of any loss, damage, costs, expenses or other claims resulting from the acts or omissions of such parties, for any faults, failures or inadequacies of the satellite system, the Services and/or the SOS emergency monitoring and response. These limitations include any failure or delay in the provision of Services as specified in the MAGNUS Device Subscriber Terms and/or MAGNUS terms of Service.
11. **Emergency Events:** Any emergency services provided to Customer shall be subject to the applicable terms of the relevant services provider including MAGNUS terms of service (as amended) in case the Services are provided by MAGNUS. In addition, Customer acknowledges and confirms that:
- He/She is over the age of 18.
 - He/She has and shall continue to have during the Term insure sufficient to cover the planned activity including all emergency events.
 - He/She is familiar with the instructions for using the Device.
 - He/She has read and understood the MAGNUS Device Subscriber Terms and MAGNUS terms of Service.
 - The Device runs on the Iridium network and MAGNUS is not liable for malfunctions in network reception.

Date: _____

Initials: _____

- MAGNUS and/or Third Pole are not responsible and not obligated to provide rescue or bear any costs in case the Customer has decided to act at its own discretion and order rescue.
 - Customer is responsible and shall bear all costs related to any search and rescue or other emergency service provided by MAGNUS. MAGNUS shall coordinate the search and rescue with the insurance company and/or the emergency contact person, except in case of emergency rescue when the emergency contact person is unreachable.
 - MAGNUS, its employees, and its subcontractors are not responsible for any damage caused to the Customer and/or to any third party as a result of action, lack of action, or advice given to the Customer.
 - Rescue will be carried out only when the exact location is verified. It is advisable to use the services of a local guide and/or to use only reputable and well-known agencies.
 - Customer is responsible to provide a valid passport photograph as well as full and accurate emergency contact details.
 - All information sent through the Device reaches MAGNUS's control center and the Customer has no claim of privacy in that respect. Customer further acknowledges that in order to carry out the Services MAGNUS shall share the details of the Customer with his/her family, local security and rescue forces, MAGNUS's sub-suppliers, and the insurance company. While doing so, MAGNUS shall not disclose the private information of the Customer, except for the purpose of providing the Customer with search and rescue services.
 - MAGNUS shall not perform any Service in case Customer conducts illegal / criminal activity.
 - Devices shall not be used for any purpose other than hiking and extreme sports.
 - MAGNUS will not be responsible for any third party advertising related to an emergency event including in social networks.
 - MAGNUS reserves the right to issue a report if the Customer has disappeared or is being rescued.
 - MAGNUS reserves the right to use the materials related to the rescue operation as marketing material without disclosing any private information of Customers.
12. **False SOS Emergency Transmissions:** Customer is solely responsible for any charges that may be assessed by MAGNUS as the Emergency Service Provider for either false SOS emergency signals and/or in relation to search and rescue activities resulting from Customer's authorized transmission of a SOS emergency transmission.
13. **Insurance: The Customer must obtain and maintain during the Term, at his/her expense, insurance for emergency events covering Search & Rescue services. Customer shall be responsible for any lack of insurance coverage. In such case, Customer shall provide the details of an emergency contact person and the details of a valid credit card to be charge with the search and rescue costs. For the avoidance of doubt, in case the emergency contact person does not approve the search and rescue operations, MAGNUS and/or Third Pole shall not be liable and shall not carry any such operations. To the extent applicable, MAGNUS and/or Third Pole will make reasonable efforts to contact the relevant embassy.**
14. **Ownership:** The supplier of the Device shall remain the sole owner of the Device at all times.
15. **Termination:** If Customer fails to perform any obligation when due under this Agreement, or otherwise breaches this Agreement, Third Pole has the right to terminate this Agreement forthwith by providing written notice to the Customer. Upon such termination: (a) the balance of the Gross Rental Amount will be due and payable immediately and, (ii) Third Pole has the right, at its sole discretion, to take possession of and remove the Device from service immediately. Any other damages or amount chargeable to the Customer shall be immediately due upon such termination.
16. **Notices:** All notices and other communications required or permitted to be given under this Agreement will be in writing and will be effective when delivered personally, when sent by confirmed fax, e-mail, mail or certified courier to the parties at their following addresses:
- a. **If to Customer:** To the address given in "Customer Details"

Date: _____

Initials: _____

- b. If to Third Pole: Third pole search rescue pvt PO.Box 23962 Thamel Kathmandu Nepal.

17. **Miscellaneous:** (a) Entire Agreement. This Agreement including the MAGNUS Device Subscriber Terms and the Garmin Terms constitutes the entire agreement between the parties hereto on the subject matter hereof and supersedes all prior agreements and understandings of every kind and nature between them. (b) Amendments. No amendment or modification to this Agreement shall be effective unless in writing and signed by both parties. (c) Assignment. This Agreement shall be binding on and insure to the benefit of the successors and assignees of the Parties. Customer shall not assign or transfer any of its rights or obligations hereunder. (d) Waiver. No waiver by Third Pole of any of the provisions hereof shall be effective unless explicitly set forth in writing and signed by an authorized representative of Third Pole, and no waiver by Third Pole shall operate or be construed as a waiver in respect of any failure, breach, or default not expressly identified by such written waiver, whether of a similar or different character, and whether occurring before or after that waiver. No failure by Third Pole to exercise, or delay in exercising, any right, remedy, power, or privilege arising from this Agreement shall operate or be construed as a waiver thereof; nor shall any single or partial exercise of any right, remedy, power, or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, remedy, power, or privilege. (e) Force Majeure. Neither Party shall be in default hereunder by reason of any failure or delay in the performance of any obligation under this Agreement (other than an obligation to make payments in accordance with this Agreement) where such failure or delay arises out of any cause beyond the reasonable control and without the fault or negligence of such Party. (f) Governing Law. This Agreement will be governed by the laws of Nepal without regard to its choice of law provisions. The exclusive jurisdiction and venue for actions related to the subject matter hereof shall be the competent courts in the city of Kathmandu Severability. If any provision of this Agreement shall be deemed illegal or unenforceable, such illegality or unenforceability shall not affect the validity and enforceability of any legal and enforceable provisions hereof which shall be construed as if such illegal and unenforceable provision or provisions had not been inserted herein, unless such illegality or unenforceability shall destroy the underlying business purpose of this Agreement.

Date: _____

Initials: _____